

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/29/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01582060 Cakmak vs. Boor	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Defendant is to serve notice of the Court's ruling.
2	30-2026-01578483 Liao vs. Romero	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 21), Plaintiff's Opposition (ROA 25) and the Complaint (ROA 2). When a party files a demurrer, the Court looks at the facial sufficiency of the complaint and attachments only and cannot consider extrinsic evidence. The Court must assume that the statements contained within the Complaint are true in determining facial sufficiency. As such, the Court OVERRULES the Defendants' demurrer.

		The Defendants are ordered to file an answer within 5 calendar days. The Court sets a trial date of July 12, 2026, at 8:30 AM in C61. Witnesses are required to testify in person unless the Court finds good cause to allow remote testimony. The party seeking remote testimony of a witness must file the request and service notice to all parties and the Court at least 5 days prior to the trial date. Parties should have at least three (3) copies of any documentary evidence they intend to present in the trial-one for themselves, one for the opposing party, and one for the Court. If the parties upload any evidence to the evidence portal, or intend to present any video evidence, they must have a device available to present such evidence in the courtroom on the day of trial. Plaintiff's Counsel is ordered to provide notice of ruling.
3	30-2026-01583415 Broadstone Alton, LLC vs. Aljohani	The Court has read and considered the Defendant's Demurrer (ROA 12) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an answer within 5 calendar days. The Plaintiff is ordered to serve notice of the Court's ruling.
4	30-2026-01577411 Hoang Do vs. Zhang	The Court has read and considered the Defendant Adeleil Zhang's Motion to Quash Service of Summons (ROA 47). The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 11) and Proof of Service of Posting (ROA 18). The Plaintiff in this matter submitted an Application to Serve Summons by Posting which was granted by this Court on 6/29/2026 (ROA 11). Registered Process Server David Cunningham (OC # 1895) signed a declaration of attempted service at the premises address on three different dates at three different times of the day prior to the Court approving service by posting. In ROA 18, Mr. Cunningham states that on 7/11/2026 at 10:30 AM, he posted the summons, complaint, prejudgment claim, and other documents to the premises and then sent the same packet by certified mail to the Defendant Adeleil Zhang. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Defendants have provided no evidence to rebut the presumption under Evidence Code Section 647, other than their self-serving statements that they found the summons and complaint in their mailbox on June 24, 2026, and that they have received no other service. The Motion to Quash Service of Summons is DENIED. Adeleil Zhang is ordered to file a responsive pleading within 5 calendar days.